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Newsom draws criticism of 'asymmetry' for signing expansive Muslim holiday bill before more limited legislation about Jewish, other days

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California Gov. Gavin Newsom, a Democrat, drew criticism on Wednesday night when he signed a more focused bill recognizing Jewish and other holidays after appearing to have prioritized signing a more expansive bill about Muslim holidays days before.

A spokeswoman for Democratic state representative Jesse Gabriel, chair of the Jewish Legislative Caucus and the bill's sponsor, confirmed to JNS late on Wednesday that Newsom signed AB 395 into law, designating Rosh Hashanah, Yom Kippur and Passover and days sacred to other faiths as state holidays to protect students and California employees from scheduling and other conflicts.

Elizabeth Barcohana, chair of Jewish engagement for the California Republican Party, told JNS that it is a "concerning sign" of the influence of the Council on American-Islamic Relations in U.S. politics that it sponsored the bill about Muslim holidays.

CAIR blamed Israel for being attacked shortly after Oct. 7. The Biden administration initially included it in an advisory role on the national strategy on Jew-hatred before dropping it.

"The fact that Newsom chose to sign the Eid law before the law that protected other religious observance speaks volumes about the direction he is moving as he eyes a 2028 run for the presidency," Barcohana told JNS.

David Bocarsly, CEO of Jewish California, told JNS that AB 395 is the first time a Jewish holiday has been named in California state law.

"I'm really thrilled that California has recognized the Jewish community in this way," he said. "There have been so many instances where Jewish community members, and I'm sure this is the case for others as well, were trying to attend a public meeting to make public comment because it impacts their lives and the meeting is scheduled on holiday, and they just are unable to."

Bocarsly cited a "particularly egregious situation in Santa Ana," in which "school board members were found in discovery to have texted each other, scheming to have a school board meeting on Passover so that Jews wouldn't show up to give public comment on the ethnic studies curriculum."

"There are some real impacts here on the betterment of Jewish engagement in civic life, which ultimately have long-standing impacts on what policy is made," he told JNS. "I'm particularly excited about it."

Newsom, who signed AB 2017 recognizing Muslim holidays Eid al-Fitr and Eid al-Adha as statewide holidays earlier in the week, had the option to sign or veto AB 395 by Sept. 30. A spokeswoman for the governor previously told JNS that he had "until midnight to take action."

AB 2017 allows schools to offer classroom instruction exploring the history of Eid al-Fitr and Eid al-Adha and allows the State Board of Education to adopt a model curriculum guide for Eid-related lessons, but AB 395 has no such provision for the Jewish and other holidays.

According to Bocarsly, the communities involved in the bills asked for different things.

"It looks different than what other communities are asking for, and that's because we're asking for something else

that addresses the needs of our community," he told JNS. "But both AB 2017 and AB 395 do one thing that is similar, which is acknowledge these holidays."

"We're proud that Jewish holidays are now part of state law," he said.

Lisa Cusack, Republican chairwoman of California's 44th Assembly district, told JNS that she is "OK with saying that you can take off the holiday of your faith without being punished" but is concerned that the Eid legislation, sponsored by the CAIR, allows educators to create classroom lessons about those holidays.

"Where I have a problem is bringing teaching about Islam into the school," Cusack said.

"My father comes from Turkey. He was a Christian born in a Muslim country and faced persecution there," she told JNS. "The left has been so determined to create a separation of church and state, between Christianity and the state. Instead, it's taken the church out of the state and now appears to be replacing it with Islam."

Barcohana told JNS that the "asymmetry between the bills" struck her.

"Eid receives all the same protections as Jewish holidays, plus more," she said. "Schools can close for Eid, and they can develop curriculum to teach the 'meaning and significance' of Eid."

"People may think this is alarmist, but this is an example of American laws adopting a Sharia law framework," Barcohana told JNS. "Special protections no other religious observance receives, the option to shut down public institutions to observe the holiday that, until now, only Christian holidays received and curriculum in public schools that is religious in nature notably about a religion that emphasizes conversion."

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